

25CHCV02423 25CHCV02423

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25CHCV02423 Hearing Date: August 18, 2026 Dept: F49

Dept. F49

Date: 8/18/26

Case Name: Marlene Waldron vs Jack in the Box, Inc.;
Joanna Jimenez; and Does 1-100

Case No. 25CHCV02423

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 18, 2026

MOTION TO BE
RELIEVED AS COUNSEL

Los Angeles Superior
Court Case No. 25CHCV02423

Motion filed: 3/9/26

MOVING PARTY: Counsel Stephan Airapetian of Stephan
Filip Arayi for Plaintiff Marlene Waldron

RESPONDING PARTY: Defendant Jack in the Box

NOTICE: OK

RELIEF REQUESTED: An order from this Court relieving Stephan Airapetian of Stephan Filip Arayi as counsel for Plaintiff Marlene Waldron.

TENTATIVE RULING: The Motion is GRANTED.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiff Marlene Waldron ("Plaintiff") when she slipped and fell on Defendant Jack in the Box, Inc.'s premises. On July 9, 2025, Plaintiff filed the Complaint against Jack in the Box, Inc., Joanna Jimenez, and Does 1 through 100, alleging general negligence and premises liability. On April 7, 2026, at the request of Plaintiff, the Court dismissed Joanna Jimenez from the action.

On September 30, 2025, Jack in the Box, Inc. filed its Answer.

On March 9, 2026, Plaintiff's counsel, Stephan Airapetian ("Airapetian") of Stephan Filip Arayi, filed the instant Motion to Be Relieved as Counsel (the "Motion").

On August 4, 2026, Jack in the Box, Inc. filed a response.

ANALYSIS

The court may order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (Code Civ. Proc. § 284, subd. (2).)

"The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court." (Manfredi & Levine v. Super. Ct.

(1998) 66 Cal.App.4th 1128, 1133.) The trial court may deny an attorney's request to withdraw if the withdrawal would cause injustice or undue delay in the proceeding. (Mandell v. Super. Ct. (1977) 67 Cal.App.3d 1, 4.)

Withdrawal at a critical point in the proceedings is generally not permitted because it would prejudice the client's case. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) There is no authority preventing withdrawal, however, when it can be accomplished without prejudicing the client's interests. (Ibid.)

An application to be relieved as counsel must be made on Judicial Council Forms MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition, California Rules of Court, rule 3.1362, subdivision (d) requires that the notice of motion and motion, declaration, and proposed order be served on the client and all other parties who have appeared in the case by personal service, electronic service, or mail. If the notice is served by mail, it must be accompanied by a declaration stating facts showing that either:

(A) The service address is the current residence or business address of the client; or

(B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

(Cal. Rules of Court, rule 3.1362, subds. (d)(1)(A)-(B).)

A.
Motion to Be
Relieved as Counsel

Airapetian has filed Judicial Council Forms MC-051 and MC-052 and has lodged Form MC-053 with the Court. Airapetian states that the Motion is necessitated by "a complete and total breakdown in

communication and working relationship between” Plaintiff and Airapetian’s office. (MC-052, ¶ 2.) Airapetian explains that Plaintiff has been non-responsive to written and telephonic communications from counsel, precluding effective representation. (Ibid.) Based on the foregoing, the Court finds that Airapetian has provided adequate reasons for seeking relief.

Airapetian indicates that the motion papers were served by mail on Plaintiff at her last known address, but that he has been unable to confirm that the address is current after: (1) mailing the motion papers, return receipt requested, (2) calling Plaintiff at her last known telephone number, (3) conducting a LexisNexis database search, and (4) retaining the investigative services of USA Express, Inc. to find the most recent address for Plaintiff. (MC-052, ¶ 3.) Airapetian’s office also served the motion papers at every previous known address for Plaintiff, with no success. (Ibid.) Based on the foregoing, the Court finds that Airapetian and his office have made a reasonable effort to locate a more current address for Plaintiff.

Airapetian has filed proof of service showing that the motion papers were served on Jack in the Box, Inc. Airapetian has accordingly complied with rule 3.1362, subdivision (d).

Trial in this action is not yet set. (MC-052, ¶ 6.) The record reflects that a case management conference is scheduled the same day as the hearing on the Motion. No future hearings are scheduled.

Plaintiff has not opposed the Motion or otherwise demonstrated that prejudice will result from discharging Airapetian.

Jack in the Box, Inc. has filed a Response to the Motion. Jack in the Box., Inc. does not oppose Airapetian’s withdrawal, but requests confirmation of the service method for Plaintiff.

When moving counsel complies with the service requirements of the rule governing withdrawal, the address set forth in the order granting relief becomes the address of record for the party whose counsel has been relieved, subject to general service requirements. (Stuart Whitman, Inc. v. Cataldo (1986) 180 Cal.App.3d 1109, 1112.)

Here, Airapetian has set forth Plaintiff’s last known

address and telephone number in the proposed order, and the Court has found that Airapetian has complied with the service requirements of rule 3.1362. Upon Airapetian's relief, Plaintiff's last known address as set forth in the order is accordingly the address of record for Plaintiff.

Based on the foregoing, the Court GRANTS the Motion.

CONCLUSION

The Motion to be Relieved as Counsel for Plaintiff Marlene Waldron, filed by counsel Stephan Airapetian of Stephan Filip Arayi, is GRANTED.

Moving counsel to give notice.